

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #07	CCRB Case #: 201909820	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/10/2019 2:40 PM, Sunday, 11/10/2019 5:30 PM	Location of Incident: § 87(2)(b) and the 120th Precinct stationhouse	18 Mo. SOL 12/25/2021	Precinct: 120		
Date/Time CV Reported Tue, 11/12/2019 6:02 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 11/12/2019 6:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nick Ou	11236	964692	120 PCT
2. POM Michael Birch	01724	948674	120 PCT
3. POF Stephanie Corporan	10837	953518	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Birch	Abuse: At § 87(2)(b) in Staten Island, Police Officer Michael Birch threatened to remove § 87(2)(b) to the hospital.	A . Unsubstantiated
B . POM Nick Ou	Abuse: At the 120th Precinct stationhouse in Staten Island, Police Officer Nick Ou did not process § 87(2)(b)'s complaint regarding an officer.	B . Substantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On November 12, 2019, § 87(2)(b) appeared as a walk-in complainant at the CCRB and filed the following complaint.

At approximately 2:40 p.m. on November 10, 2019, § 87(2)(b) got into an argument with her next-door neighbor about their shared property boundary. § 87(2)(b) lives at § 87(2)(b) in Staten Island, while her neighbor lives at § 87(2)(g). § 87(2)(b)'s neighbor called 911, and Police Officer Michael Birch and Police Officer Stephanie Corporan of the 120th Precinct responded. § 87(2)(b) went outside and spoke to the officers. Police Officer Birch allegedly told § 87(2)(b) "One more word out of you and I'll handcuff you and take you to the hospital." (**Allegation A: Abuse of Authority: Threat of removal to hospital: Unsubstantiated**) § 87(2)(b) said that she would report Police Officer Birch to IAB, and he allegedly repeated his threat to have § 87(2)(b) removed to a hospital (within **Allegation A**). § 87(2)(b) then walked away from the incident area.

At approximately 5:30 p.m. the same day, § 87(2)(b) entered the 120th Precinct stationhouse in Staten Island and spoke to Police Officer Nick Ou of the 120th Precinct at the public-facing service window near the stationhouse entrance. She told Police Officer Ou that she wanted to file a criminal complaint report against her neighbor and a report of police misconduct against the officers who came to her home. Police Officer Ou prepared the criminal complaint but did not prepare a report of police misconduct (**Allegation B: Abuse of Authority: Refusal to process civilian complaint: Substantiated**).

The investigation obtained no video footage of this incident. Neither Police Officer Birch nor Police Officer Corporan activated their body-worn cameras while speaking to § 87(2)(b). § 87(4-b) § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: At § 87(2)(b) in Staten Island, Police Officer Michael Birch threatened to remove § 87(2)(b) to the hospital.

§ 87(2)(b) provided a sworn statement at the CCRB on November 12, 2019 (**Board Review 01**). Police Officer Birch and Police Officer Ou were interviewed on March 2, 2020 (**Board Review 02** and **Board Review 03**). Police Officer Corporan was interviewed on May 5, 2021 (**Board Review 09**).

It is undisputed that § 87(2)(b)'s next-door neighbor called 911 regarding a verbal dispute between herself and § 87(2)(b). Police Officer Birch and Police Officer Corporan responded, spoke to the next-door neighbor, and then spoke to § 87(2)(b). § 87(2)(b) and Police Officer Birch provided conflicting accounts of this conversation.

§ 87(2)(b) stated that Police Officer Birch waved to her while she was inside her house, near a window, to indicate that she should come outside and talk to him. Upon approaching him, Police Officer Birch said, "It's not your house. We looked it up, it's your parents' house." § 87(2)(b) said, "I'm going to Internal Affairs." Police Officer Birch replied, "One more word out of you and I'm going to handcuff you and take you to the hospital." Police Officer Birch told § 87(2)(b) that he had previously responded to her house

but did not elaborate.

In his interview, Police Officer Birch stated that in the calendar year leading up to this incident, he responded to § 87(2)(b)'s house or the neighboring addresses approximately once per week (a total of approximately 50 times). Many of these responses stemmed from 311 calls or reports of an EDP. Police Officer Birch was present for approximately five or six incidents in which § 87(2)(b) was forcibly removed to a hospital. Throughout these previous incidents, Police Officer Birch noticed a pattern of erratic behavior on § 87(2)(b)'s part. She frequently told EMTs that she does not take her medication, which has in turn led to her hospitalization. Police Officer Birch did not know what medication § 87(2)(b) was supposed to be taking or what specific conditions it was supposed to treat, but he knew that her condition was mental and not physical. Police Officer Birch did not recall § 87(2)(b) ever threatening to hurt someone else or herself, and § 87(2)(b) had never tried to hurt him.

During this incident, Police Officer Birch and Police Officer Corporan spoke to § 87(2)(b)'s neighbor for approximately two minutes. She did not report anything that led Police Officer Birch to believe that § 87(2)(b) needed to be medically evaluated.

Then, § 87(2)(b) came out her front door and “stormed” over to the officers. She moved faster than a typical walking pace and appeared angry to Police Officer Birch. As she approached, she began screaming and yelling. Police Officer Birch did not recall § 87(2)(b)'s specific statements but recalled that she accused her neighbor of lying and generally being at fault in their dispute.

Police Officer Birch told § 87(2)(b) that screaming and cursing at her neighbor was unlikely to resolve the problem. § 87(2)(b) did not appear to listen to Police Officer Birch and continued to shout over him. Over the course of the incident, § 87(2)(b)'s demeanor was constantly angry, which was consistent with her demeanor in previous incidents.

Because Police Officer Birch had been present numerous previous times when § 87(2)(b) had been taken to the hospital, he told her that if she continued to act the way she was acting then she would be taken there again. Police Officer Birch told the investigation that he based this threat on § 87(2)(b)'s very loud speech volume, her erratic behavior (waving her hands around, screaming obscenities, not listening to other people, and appearing to be in her own world), his knowledge from previous incidents that she has a mental condition, and the fact that, in previous incidents, § 87(2)(b) has acted the same way and EMS has deemed it necessary to take her for evaluation.

Police Officer Birch did not recall ever telling § 87(2)(b) that she could be handcuffed. He explained to the investigation that had § 87(2)(b) become violent then he would have handcuffed her, but her actual behavior during the incident did not require handcuffing.

Police Officer Birch did not recall ever discussing § 87(2)(b)'s property or who owns it. Police Officer Birch did not recall telling § 87(2)(b) that she did not own her house or that her house belonged to a family member.

Police Officer Birch did not recall § 87(2)(b) threatening to file CCRB or IAB complaints. In Police Officer Birch's previous interactions with § 87(2)(b) she has frequently threatened to file complaints, but Police Officer Birch had never been the subject of such a complaint before.

Police Officer Corporan's interview statement, while less detailed than Police Officer Birch's, is consistent with his.

According to NYPD Patrol Guide Procedure 221-13, an officer may remove an

emotionally disturbed person (EDP) to the hospital when they reasonably believe the EDP is conducting herself in a manner likely to result in serious injury to herself or others **(Board Review 04)**.

§ 87(2)(g)

it is therefore recommended that **Allegation A** be **unsubstantiated**.

Allegation B – Abuse of Authority: At the 120th Precinct stationhouse in Staten Island, Police Officer Nick Ou did not process § 87(2)(b) s complaint regarding an officer.

It is undisputed that after Police Officers Birch and Corporan visited her house, § 87(2)(b) went to the 120th Precinct stationhouse. She spoke to Police Officer Ou and filed a criminal complaint against her neighbor, which Police Officer Ou recorded in UF-61 #2 § 87(2)(b) **(Board Review 05)**.

In her sworn statement, § 87(2)(b) said that she then told Police Officer Ou that she wanted to file a complaint against Police Officer Birch for threatening to remove her to a hospital. Police Officer Ou said, “I can’t take that report on them.” § 87(2)(b) asked, “Why not?” Police Officer Ou replied, “I can’t take that on them.” § 87(2)(b) said she would file her complaint against Police Officer Birch with IAB or the CCRB, then left the stationhouse.

In his interview, Police Officer Ou said that as he prepared the UF-61, § 87(2)(b) said that two officers had come to her house earlier that day and threatened her. Police Officer Ou did not recall with what the officers had allegedly threatened § 87(2)(b) or if § 87(2)(b) named or described them. Police Officer Ou did not recall if § 87(2)(b) asked for anything specific to happen regarding the officers’ threats or to initiate any specific complaint process. Police Officer Ou described himself to the investigation as taking initiative in providing § 87(2)(b) with IAB’s phone number and telling her to call them regarding the officers’ threats. § 87(2)(b) seemed unsatisfied with this response and immediately walked out of the stationhouse. Police Officer Ou did not recall if § 87(2)(b) said anything as she walked away. Police Officer Ou did not prepare a civilian complaint form regarding this incident.

The investigation asked Police Officer Ou to explain his understanding of the NYPD procedure regarding civilian complaints of officer misconduct. Police Officer Ou said that if a civilian reports an officer threatening them then he must refer the complainant to CCRB or IAB depending on the incident. In this case, based on § 87(2)(b) s report, Police Officer Ou believed that IAB was the appropriate referral. Police Officer Ou did not know if NYPD procedure obligated him to take a report himself in the stationhouse in response to § 87(2)(b) s complaint.

Under NYPD Patrol Guide Procedure 207-31, when a civilian complains, in person, of FADO misconduct by one officer to another officer, that second officer must interview

the civilian, give them a civilian complaint form, and transmit that complaint form to the appropriate NYPD and CCRB staff (**Board Review 06**).

§ 87(2)(g)

it is therefore recommended that **Allegation B** be **substantiated**.

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to 17 prior CCRB complaints and has been named as a victim in 43 prior allegations (**Board Review 07**).

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§ 87(2)(b)

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[illegible]

- § 87(2)(g)

- Police Officer Ou has been a member of service for three years and has been the subject of two prior CCRB complaints and three prior allegations, none of which were substantiated.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation.
- According to the New York City Office of the Comptroller, no Notice of Claim has been filed regarding this complaint (**Board Review 13**).

§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____ Matt Chaves Signature	_____ SI Matt Chaves Print Title & Name	_____ 07/07/2021 Date
Squad Leader:	_____ Vanessa Rosen Signature	_____ Manager Vanessa Rosen Print Title & Name	_____ 07/08/2021 Date
Reviewer:	_____ Signature	_____ Print Title & Name	_____ Date